

CASE FILE — Brizzi v. Tesla, Inc. | Disallowed \$7,500 Clean Vehicle Credit

Prepared: June 13, 2026 · **Status:** active · **Floor goal:** recover \$7,500 + interest · **Ceiling goal:** treble damages (\$22,500) + attorney's fees

*Master dossier. Section 12 indexes the supporting documents in this repo. Fields in [BRACKETS] still need filling; **keep the full SSN out of this repo** — only the last four (••7652) appears, as it does on the public Form 15400.*

1. Executive summary

Robert and Tabitha Brizzi bought a new 2026 Tesla Model Y from Tesla's Raleigh, NC location and qualified, in full, for the \$7,500 federal Clean Vehicle Credit (IRC § 30D). At delivery, Tesla's General Manager **completed and furnished IRS Form 15400 (Clean Vehicle Seller Report) certifying the \$7,500 credit** — but Tesla **never transmitted the matching time-of-sale report through the IRS Energy Credits Online (ECO) portal**, the step that creates the IRS record needed to claim the credit. With no record to match, the IRS issued **Notice CP23** on June 8, 2026 disallowing the credit and assessing tax plus interest. The Brizzis' loss is caused solely by Tesla's failure to file a report it had certified.

The one-line theory: *Tesla put the credit on its own completed federal form, then failed to file it — and is billing the customer for the difference.*

2. Parties & identifiers

Taxpayers / claimants - Robert L. Brizzi and Tabitha H. Brizzi — Married Filing Jointly - Buyer of record (Form 15400): Robert Louis Brizzi, TIN ••7652 - Address: 5220 Crescent Square St, Raleigh, NC 27616-4340 - Contact: (850) 221-7443 · brizzi78@icloud.com (alt: robertbrizzi@gmail.com) - CPA: **Sterling Price**, ncllcpa.com (returns from leave June 18, 2026)

Seller / respondent - Tesla, Inc. — EIN **91-2197729** - Location: 2641 Sumner Blvd, Raleigh, NC 27616 (licensed to sell in North Carolina) - Signatory on Form 15400: **Dan Ansari, General Manager** (verified: GM, Multi-Unit, Tesla, Raleigh) - Customer contact line used: 877-798-3752 · dispute address: resolutions@tesla.com - NC registered agent for service: **[confirm at sosnc.gov on day of filing]**

3. The vehicle & transaction

- 2026 Tesla **Model Y Long Range All-Wheel Drive**, VIN **7SAYGDEE6TA451515**
- Battery 75 kWh · Order No. **RN125485754**
- Ordered 08/12/2025 · **Delivered / placed in service 08/21/2025** (Raleigh, NC)
- Price: base \$48,990 · **total \$51,630**

4. Eligibility — every criterion met

Requirement	Limit	Brizzis	Status
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Filing status / income (MAGI)	< \$300,000 MFJ	\$212,363	✓
Vehicle MSRP (Model Y = SUV)	≤ \$80,000	\$51,630 total	✓
New vehicle, original use, personal	Required	Yes (per Form 15400)	✓
Seller report — paper Form 15400	Furnished to buyer	Completed by Tesla GM, lists \$7,500	✓
Seller report — electronic ECO filing	Transmitted by seller	NEVER FILED	✗ ← root cause

5. What went wrong (the decisive distinction)

A **completed paper Form 15400 furnished to the buyer is not the same as the electronic time-of-sale report transmitted through IRS Energy Credits Online**. The IRS matches a return against the *electronic* submission. Tesla completed the paper certification and skipped the electronic filing. That is why the Brizzis hold a completed government form saying "\$7,500" while the IRS notice says "no matching record." Both are true; the gap is Tesla's unfiled ECO report.

The window to fix this has likely closed — which makes it Tesla's fault, not a way out for Tesla. IRS guidance set a cutoff for submitting *late* 2025 time-of-sale reports through Energy Credits Online — reported as **on/around June 1, 2026** (an earlier Feb 7, 2026 deadline was referenced and later phased out). As of mid-July 2026 that window appears **closed**, consistent with what Tesla has told the Brizzis. **Confirm the exact cutoff and any exception with the IRS/Sterling.** The significance: Tesla had from delivery (08/21/2025) through ~June 1, 2026 — **over nine months, including the Brizzis' written demand in March 2026** — to file, and did not. The credit is now likely unrecoverable by filing, so the loss is **permanent and caused by Tesla running out the clock**. That strengthens the money claim: the only remedy left is recovery from Tesla. Sources: IRS GovDelivery "Phase-Out of ECO for Clean Vehicle Credits Portal"; NHADA "Submit 2025 Time of Sale Reports Before 6/1"; EY (Feb 7, 2026 extension).

6. Tesla's shifting (and false) explanations

When contacted, Tesla gave three inconsistent accounts, none matching the notice: 1. "Your income was too high." — False; MAGI \$212,363 < \$300,000 MFJ. 2. "Head of Household was entered during the transaction." — Not the Brizzis' filing status. 3. "A new employee may have entered it incorrectly." 4. Refused to let the customer photograph or keep the internal document it relied on.

These contradictions, plus the refusal to produce records, support an inference of internal error and bolster the unfair-and-deceptive-practices claim.

7. The IRS notice (CP23)

- **Notice CP23**, Tax Year 2025, Form 1040, dated **June 8, 2026**
- Total tax adjusted **\$28,939 → \$36,439** (the exact **\$7,500** credit removed)
- Balance due \$2,272.00 (overpayment absorbed the rest) + interest \$20.58 (6%, 54 days)
- "Pay by" June 28, 2026 · **Deadline to disagree / preserve Tax Court rights: Aug 7, 2026**
- IRS contact for disagreement: 800-829-8374 · mail: IRS, Kansas City, MO 64999-0010

8. Timeline

Date	Event
2025-08-12	Order RN125485754 placed; Tesla Order Agreement accepted.
2025-08-21	Delivery / placed in service. GM Dan Ansari completes & furnishes Form 15400 (\$7,500), name printed (not wet-signed) — but the ECO report is never transmitted.
2026-03-26/27	Brizzi emails Tesla (Resolutions, Sales, Delivery Ops, Support) demanding the filing or \$7,500; Support auto-replies "paused." Unresolved. Portal still open.
2026-05 (approx.)	Brizzi again presses Tesla about the credit. Portal still open; Tesla still has ECO access — and still does not file.
2026-06-01 (approx.)	IRS cutoff for submitting late 2025 time-of-sale reports — the window closes. Only now is the credit unrecoverable by filing.
2026-06-08	IRS issues Notice CP23 disallowing \$7,500.
2026-06-12	CPA Sterling Price engaged; dispute letter v3 drafted (out of office to June 18).
2026-06-28	CP23 "pay by" date (interest accrues).
2026-08-07	Deadline to disagree with CP23 / preserve Tax Court rights.

9. Legal theories & recoverable damages

Theory	Forum	Recovery
Money owed / breach (failure to perform certified filing)	Small claims	\$7,500 + interest
Negligent misrepresentation / negligence	Arbitration or court	actual damages
NC UDTPA, § 75-1.1 (certify a benefit, then fail to file)	Arbitration or NC District/ Superior Court	\$7,500 trebled = \$22,500 + attorney's fees (§§ 75-16, 75-16.1)

Not recoverable: pain & suffering / emotional distress (this is an economic dispute; the statutory "punishment" is **treble damages**, not emotional distress).

Tesla's likely defense (Order Agreement disclaims incentive guarantees) fails: the Brizzis *were* eligible; the loss came from Tesla not performing a filing it **stated on Tesla's own federal form**, which the disclaimer does not cover.

10. Forum strategy

- **Dodge-proof floor:** NC small claims (Wake County, ≤ \$10,000) for \$7,500 + interest. The Order Agreement's arbitration clause **expressly preserves small claims**, so Tesla cannot force arbitration.
- **Maximum / punishment:** AAA arbitration for the trebled \$22,500 + fees. If Tesla refuses to arbitrate or pay AAA fees, that **waives** the clause → file in **NC District/Superior Court** (no small-claims cap).
- **Parallel pressure:** FTC + NC Attorney General complaints; potential class action (Tesla *and* Rivian buyers suffer the same failure — claimants are early).

11. Evidence inventory (originals held by claimant)

Exhibit	What it proves
Completed IRS Form 15400 (08/21/2025, Dan Ansari, GM)	Tesla's own form lists eligibility & \$7,500; identifies VIN, buyer, original use
IRS Notice CP23 (5 pp, 06/08/2026)	The disallowance, the \$7,500 swing, the deadlines
Tesla Order Agreement (Order RN125485754)	Purchase terms; incentives & arbitration clauses
Tesla emails (03/26–27/2026)	Documented demand + Tesla non-response
CPA correspondence / dispute letter v3	Professional engagement; eligibility (MAGI \$212,363)

12. Document index (this repo)

File	Purpose
00-CASE-FILE.md	This master dossier
case-timeline.md	Condensed facts/timeline/strategy
campaign-plan.md	Sequenced "every angle" action plan + damages reality
irs-cp23-response.md	Formal CP23 disagreement (mail before Aug 7)
tesla-time-of-sale-request.md	Escalation demand to Tesla
ftc-complaint.md	FTC complaint
nc-ag-complaint.md	NC Attorney General complaint
tesla-arbitration-demand.md	AAA demand — \$22,500 + fees
tesla-small-claims-statement.md	NC magistrate claim — \$7,520.58
court-records-search.md	Check for existing suits + nationwide 15400 scan
attorney-search.md	How to find a contingency consumer attorney
tesla-tax-credit.md	The narrative article

13. Immediate to-do

- ☐ **Before Aug 7:** mail CP23 response (certified) — coordinate with Sterling (June 18)
- ☐ Send Tesla escalation (starts 10-day + 60-day clocks)
- ☐ File FTC + NC AG complaints
- ☐ Book 2–3 contingency attorney consults (NACA / NC Bar)
- ☐ Confirm Tesla's NC registered agent at sosnc.gov before any court filing
- ☐ Choose lane: small claims (floor) and/or arbitration→court (ceiling)
- ☐ Fill remaining [BRACKETS]; keep full SSN off the repo

This dossier is an organizational summary, not legal or tax advice. Have a NC consumer-protection attorney (litigation) and CPA Sterling Price (the IRS response) review before filing.

Campaign Plan — Every Angle on Tesla's Unfiled Form 15400

Objective: maximum pressure and recovery for the lost \$7,500 Clean Vehicle Credit. **Floor outcome you'll settle for:** the \$7,500 + interest back via small claims. **Ceiling you're pushing for:** treble damages + attorney's fees.

Reality check on damages (read this first)

Damage type	Recoverable here?	Where
The \$7,500 credit + IRS interest (economic loss)	Yes	Small claims, arbitration, or court
Treble damages (\$22,500)	Yes (NC UDTPA § 75-16)	Arbitration or NC District/Superior Court
Attorney's fees	Yes (NC UDTPA § 75-16.1)	Arbitration or court
Court costs / post-judgment interest	Yes	Any forum
Pain & suffering / emotional distress	No	Not available for a financial/consumer credit dispute — a magistrate awards money owed, not emotional distress. Don't plead it.

Takeaway: the "make them feel it" money is **treble damages**, not pain and suffering. Treble is the statutory punishment — pursue that, not emotional distress.

The angles, sequenced

1. Protect the credit (deadline-driven) — DO FIRST

- File the **IRS CP23 response** (`irs-cp23-response.md`), certified mail, **before Aug 7, 2026**. Lead exhibit: the completed Form 15400.
- Coordinate with CPA **Sterling Price** (back June 18).

2. Demand on Tesla (starts the clock)

- Send the **escalation** (`tesla-time-of-sale-request.md`) to resolutions@tesla.com: file the late report or pay \$7,500 + interest, **within 10 business days**.
- This also opens the **60-day pre-arbitration window** required by the Agreement.

3. Regulatory pressure (free, parallel)

- **FTC** complaint (`ftc-complaint.md`).
- **NC Attorney General** complaint (`nc-ag-complaint.md`) — asks for UDTPA review.
- These don't pay you, but they create leverage and a paper trail, and can prompt Tesla to fix it to avoid

scrutiny.

4. Lawyer up for the ceiling

- Get **2–3 contingency consults** via NACA (consumeradvocates.org) and the NC Bar referral. See `attorney-search.md`.
- Ask each: individual UDTPA claim vs. **class action** (Tesla + Rivian buyers hit the same failure — you'd be early).

5. Litigate — pick the lane

- **Floor / dodge-proof:** small claims (`tesla-small-claims-statement.md`) → \$7,500 + interest. Tesla can't force this into arbitration.
- **Ceiling / punishment:** AAA arbitration (`tesla-arbitration-demand.md`) → \$22,500 + fees. If Tesla refuses to arbitrate or pay AAA fees, that waives the clause → file in **NC District/Superior Court** for the same amount.

Decision rule

- Want it **over fast** and just made whole? → **small claims** (\$7,500 + interest).
- Want to **punish and maximize**? → **UDTPA via arbitration/court** (\$22,500 + fees), ideally with a contingency attorney so it costs you little.
- You can do **both in sequence**: small claims is quick and cheap; if Tesla still won't fix the filing, escalate the UDTPA claim. (Avoid double-recovery — credit the small-claims award against any later judgment.)

Status checklist

- ☐ IRS CP23 response mailed certified (before Aug 7)
- ☐ Tesla escalation sent (10-day clock running)
- ☐ FTC complaint filed
- ☐ NC AG complaint filed
- ☐ 2–3 attorney consults booked
- ☐ Forum chosen: small claims (floor) and/or arbitration/court (ceiling)
- ☐ Tesla registered agent confirmed at sosnc.gov (for service)

Case File — Tesla Clean Vehicle Credit (\$7,500) Disallowance

Taxpayers: Robert L. & Tabitha H. Brizzi — Married Filing Jointly **Address:** 5220 Crescent Square St, Raleigh, NC 27616-4340 **Vehicle:** 2026 model-year Tesla Model Y Long Range AWD — **VIN** 7SAYGDEE6TA451515 **Order:** RN125485754 | Total sale price \$51,630 | Placed in service 08/21/2025 **Seller:** Tesla Inc., EIN 91-2197729, 2641 Sumner Blvd, Raleigh, NC (GM: Dan Ansari) **CPA:** Sterling Price (ncllcpa.com)

The issue in one sentence

Tesla furnished the Brizzis a completed Clean Vehicle Seller Report (IRS Form 15400) certifying the full \$7,500 credit, **but never transmitted the corresponding time-of-sale report through the IRS Energy Credits Online (ECO) portal** — so the IRS has no record to match against the Form 8936 on the Brizzis' 2025 return, causing the IRS to disallow the \$7,500 credit (Notice CP23) even though the Brizzis meet every eligibility requirement and hold Tesla's own completed report.

Eligibility — all criteria met

Requirement	Limit	Brizzis	Status
Filing status / income (MAGI)	< \$300,000 MFJ	\$212,363	✓
Vehicle MSRP (Model Y = SUV)	≤ \$80,000	\$48,990 base (\$51,630 total)	✓
Vehicle type / new / personal use	Qualifying new clean vehicle	Model Y LR AWD, personal use	✓
Seller report — paper Form 15400	Furnished to buyer	Completed by Tesla GM, lists \$7,500	✓
Seller report — electronic ECO filing	Required, transmitted by seller	NEVER FILED by Tesla	✗ ← root cause

Timeline

Date	Event
2025-08-12	Order RN125485754 placed; Tesla Order Agreement accepted electronically.
2025-08-21	Delivery / placed in service (VIN 7SAYGDEE6TA451515), Raleigh, NC. Tesla GM Dan Ansari completes and furnishes a Form 15400 Clean Vehicle Seller Report (name printed, not wet-signed) listing the \$7,500 credit — but the matching report is never transmitted through IRS Energy Credits Online.
2026-03-26/27	Brizzi emails multiple Tesla departments (Resolutions, Sales, Delivery Operations, Support) demanding Tesla file Form 15400 or compensate \$7,500. Confirms sale was never submitted to IRS Energy Credits. Tesla Support auto-replies "paused — call 877.798.3752"; no resolution.

2026-06-08	IRS issues Notice CP23 (Tax Year 2025): disallows \$7,500 Clean Vehicle Credit; total tax adjusted \$28,939 → \$36,439; balance due \$2,272 + interest (~\$20.58 at 6%). Reason cited: VIN did not match IRS records.
2026-06-12	CPA Sterling Price acknowledges (auto-reply: out of office, returns June 18). Dispute letter v3 drafted.
2026-06-28	"Pay by" date on CP23 (interest continues if unpaid; disputing is separate from paying).
2026-08-07	DEADLINE to disagree with CP23 and preserve appeal / U.S. Tax Court rights.

Conflicting explanations Tesla gave (documented, for credibility)

1. "Your income was too high to qualify." — False; MAGI \$212,363 < \$300,000 MFJ.
2. "Head of Household was entered during the transaction." — Not the Brizzis' filing status; they file MFJ.
3. "A new employee may have entered the information incorrectly."
4. Refused to provide / let the customer photograph the internal document said to explain the discrepancy.

These shifting, inconsistent accounts and the refusal to share documentation support the conclusion that the failure is Tesla's internal reporting error.

Two-track strategy

Track 1 — Fix at the source (preferred). Compel Tesla to submit the late Form 15400 for this VIN through Energy Credits Online (the portal remains open to registered sellers; Tesla is registered). Once the seller report is on record, the IRS credit can be reinstated.

Track 2 — Recover from Tesla (fallback), and sue for more if ignored. If Tesla refuses to file: - **Dodge-proof path:** small claims court (NC magistrate, Wake County ≤ \$10,000) for the \$7,500 + interest. The Order Agreement's arbitration clause **expressly preserves small claims**, so Tesla cannot force this into arbitration. Drafted in `tesla-small-claims-statement.md`. - **"Sue for more" path:** AAA arbitration claiming the \$7,500 **trebled to \$22,500** plus attorney's fees under NC UDTPA (N.C. Gen. Stat. §§ 75-1.1, 75-16, 75-16.1), plus interest. Drafted in `tesla-arbitration-demand.md`. - **If Tesla refuses to arbitrate / won't pay AAA fees:** that typically **waives** the arbitration clause, freeing a filing in **NC District/Superior Court** for the full trebled amount (no small-claims cap). Civil action already initiated.

In parallel — protect IRS rights. File the CP23 disagreement (certified mail) before August 7, 2026 regardless of Tesla's response, requesting reinstatement, a collection hold, and interest abatement.

Open items / to verify

- [] Confirm the VIN matches across: the car, the Form 15400, and Form 8936.
- [] Coordinate with CPA Sterling Price (back June 18) on filing the CP23 response.
- [] Attach the completed Form 15400 as the lead exhibit to the CP23 response.
- [] Double-check the v3 dispute letter: model year should read **2026** and the notice year should read **2026**, not 2025.
- [] Send the escalation to Tesla; keep proof of delivery.
- [] If no Tesla response in 10 business days, file small claims / proceed with civil action and file FTC + NC AG complaints.

Response to IRS Notice CP23 — Disagreement with Disallowance of Clean Vehicle Credit

Before sending: fill in every [BRACKETED] field, attach the listed enclosures, and send by **USPS Certified Mail with Return Receipt** so you have proof you responded before the **August 7, 2026** deadline. Keep a full copy of everything you send.

Robert L. & Tabitha H. Brizzi 5220 Crescent Square St Raleigh, NC 27616-4340 (850) 221-7443
brizzi78@icloud.com

TIN (primary): XXX-XX-7652

Date: June 13, 2026

Internal Revenue Service Kansas City, MO 64999-0010 [CONFIRM AGAINST THE RETURN ADDRESS
PRINTED ON YOUR CP23 NOTICE]

Sent via Certified Mail, Return Receipt Requested

RE: Formal disagreement with Notice CP23, Tax Year 2025, Form 1040 (notice dated June 8, 2026)
Taxpayers: Robert L. & Tabitha H. Brizzi | TIN (primary): XXX-XX-7652 | Filing status: Married Filing Jointly

To Whom It May Concern:

I am writing in response to Notice CP23 for tax year 2025, dated June 8, 2026, which changed my return and assessed additional tax of \$7,500 by disallowing the New Clean Vehicle Credit (Internal Revenue Code § 30D) I claimed on Form 8936. **I respectfully disagree with this change and request that the credit be reinstated.** The notice states the credit was disallowed because the vehicle identification number (VIN) reported on my return did not match IRS records. That is a reporting/matching discrepancy — not a question of my eligibility — and I meet every requirement for the credit.

1. I am within the income limitation. We filed Married Filing Jointly. Our modified adjusted gross income of \$212,363 is well under the \$300,000 MFJ threshold under § 30D, and it was under the threshold in both 2025 and the preceding year. Income is not a basis for disallowance.

2. The vehicle qualifies — and the seller certified as much. We purchased a new 2026 model-year Tesla Model Y Long Range All-Wheel Drive (VIN 7SAYGDEE6TA451515; Order No. RN125485754, ordered August 12, 2025; placed in service August 21, 2025 from the Raleigh, NC Tesla location). As a sport utility vehicle, its MSRP limit is \$80,000; the vehicle's price (\$51,630 total) is below that cap. **Tesla, Inc. furnished us a completed Clean Vehicle Seller Report (IRS Form 15400), dated August 21, 2025 and completed in the name of Tesla's General Manager (Dan Ansari), certifying that the vehicle was placed in service for original use by the buyer and that the maximum credit allowable is \$7,500 (Form 15400, line 11).** A copy is enclosed.

3. The discrepancy is the seller's failure to transmit the report — not my eligibility. Although Tesla furnished us the completed Form 15400, Tesla did not submit the corresponding time-of-sale report through the IRS Energy Credits Online (ECO) portal. Because that electronic submission was never completed, the IRS has no seller report on record to match against our Form 8936 — which is why the notice reports a VIN

that "did not match IRS records." The failure is the seller's administrative omission, not any ineligibility on our part. Tesla remains a registered dealer in the Energy Credits Online system and is able to submit this report now; we are pressing Tesla to do so (formal written demand enclosed).

4. Allowance on proof of purchase. Consistent with the IRS's stated remedy for buyers whose dealers did not correctly file a time-of-sale report — that a taxpayer who receives an error or rejection may submit proof of purchase of a qualified vehicle directly to the IRS — I enclose my proof of purchase: the Tesla-completed Clean Vehicle Seller Report (Form 15400) and my Motor Vehicle Order Agreement. I request that the credit be allowed on this proof.

5. Requested relief. I ask that the IRS (a) allow/reinstate the \$7,500 New Clean Vehicle Credit based on the enclosed proof of purchase and once the seller's Form 15400 is on record; (b) hold or suspend collection while I compel the seller to file the missing report; and (c) abate the interest assessed, because the discrepancy results entirely from the seller's failure to file a required report and not from any error or ineligibility on my part. I am submitting this disagreement within the timeframe stated in the notice and I expressly preserve my right to appeal and my right to petition the U.S. Tax Court.

Enclosed are copies supporting my position. Please contact me at the phone number or address above if you need anything further.

Sincerely,

Robert Brizzi

Enclosures: - Copy of Notice CP23 (Tax Year 2025, dated June 8, 2026) - **Completed Tesla Clean Vehicle Seller Report (IRS Form 15400), dated 08/21/2025** - Form 8936 as filed with our 2025 return - Tesla Motor Vehicle Order Agreement (Order No. RN125485754) - Final Price Sheet / delivery documents showing the VIN - Copy of correspondence to Tesla regarding the unfiled time-of-sale report

Formal Escalation to Tesla — Failure to File Clean Vehicle Seller Report (Form 15400)

***Context:** This is a follow-up / escalation, not a first contact. You already sent written demands to multiple Tesla departments on March 26–27, 2026, and Tesla did not resolve them. This version references that history and adds a firm deadline plus the remedies you'll pursue. Send to resolutions@tesla.com (the dispute address in your Order Agreement) and copy the departments you reached before. Keep proof of sending.*

To: resolutions@tesla.com Cc: Raleigh_Service@tesla.com; NorthAmericaSales@tesla.com; DeliveryOperations@tesla.com; support@tesla.com From: Robert Brizzi brizzi78@icloud.com Date: June 13, 2026

RE: FORMAL ESCALATION — Tesla's failure to file the Clean Vehicle Seller Report (IRS Form 15400) for VIN 7SAYGDEE6TA451515 — Order No. RN125485754

To Tesla, Inc. Resolutions:

This is a formal escalation of an unresolved dispute. I am the purchaser of a new 2026 model-year Tesla Model Y Long Range All-Wheel Drive, **VIN 7SAYGDEE6TA451515**, Order No. RN125485754, placed in service **August 21, 2025** from your Raleigh, NC location.

The problem. At delivery, Tesla furnished me a completed Clean Vehicle Seller Report (IRS Form 15400), dated August 21, 2025 and completed in the name of your General Manager, Dan Ansari, certifying that I qualify for the maximum \$7,500 credit. **However, Tesla never transmitted the corresponding time-of-sale report through the IRS Energy Credits Online (ECO) portal.** Furnishing me the paper form is not the same as filing it with the IRS. Because the electronic submission was never completed, the IRS has no record of the sale to match against my return.

The consequence. On June 8, 2026 the IRS issued Notice CP23 disallowing the \$7,500 New Clean Vehicle Credit on my 2025 return, citing a VIN that "did not match IRS records," and assessing additional tax plus accruing interest. I am fully eligible for this credit — Married Filing Jointly with modified AGI of \$212,363 (under the \$300,000 limit), and a Model Y priced well under the \$80,000 SUV cap. The sole cause of my loss is Tesla's failure to file the required report.

Prior attempts. I raised this in writing with Tesla on March 26–27, 2026, contacting Resolutions, Sales, Delivery Operations, and Support. The Support address auto-replied that it was "paused," and the matter was never resolved.

Routing note. This is a corporate-level fix. Tesla, Inc. (EIN 91-2197729) is the single registered seller in Energy Credits Online; individual stores are not separately registered. The correction must therefore be made by Tesla's corporate tax/compliance team that holds the ECO account — not left with store staff who lack access. I ask Tesla Resolutions to route this to that team, and I ask the Raleigh store (which originated the sale and completed my Form 15400) to escalate it there and identify the responsible contact.

What I require — choose one, within 10 business days of this notice:

1. **Submit or correct the Clean Vehicle Seller Report (Form 15400)** for VIN 7SAYGDEE6TA451515 through the IRS Energy Credits Online portal. Per IRS guidance, that portal "will remain open beyond

Sept. 30, 2025, for limited usage by previously registered users to submit time-of-sale reports and updates to such reports" — which is exactly Tesla's situation. Provide me written confirmation and a copy of the accepted submission; **OR**

2. **Compensate me directly for \$7,500**, plus the IRS interest that has accrued because of this error.

If neither occurs, I will pursue all available remedies. That includes arbitration before the AAA (or small claims court, as permitted by the arbitration provision of my Order Agreement) seeking **not only the \$7,500 but treble damages and attorney's fees** under North Carolina's Unfair and Deceptive Trade Practices Act (N.C. Gen. Stat. §§ 75-1.1, 75-16, 75-16.1), plus the IRS interest your failure has caused — and complaints to the Federal Trade Commission, the North Carolina Attorney General's Consumer Protection Division, and the IRS Taxpayer Advocate Service. This letter also serves as my written dispute notice under the Order Agreement, starting the 60-day period before arbitration.

Please confirm in writing which action Tesla will take.

Sincerely,

Robert Brizzi (850) 221-7443 brizzi78@icloud.com Order No. RN125485754 | VIN: 7SAYGDEE6TA451515

FTC Consumer Complaint — Tesla, Inc. (Clean Vehicle Seller Report not filed)

How to file: Submit at reportfraud.ftc.gov (or call 1-877-382-4357). Paste the narrative below into the description field and fill the [BRACKETED] contact fields. Do **not** include your SSN — the FTC does not need it. Attach: the completed Form 15400, the IRS Notice CP23, and your March 2026 emails to Tesla.

Your information - Name: Robert L. Brizzi - Address: 5220 Crescent Square St, Raleigh, NC 27616-4340 - Phone / email: (850) 221-7443 / brizzi78@icloud.com

Company complained about - Tesla, Inc. — Raleigh, NC location, 2641 Sumner Blvd, Raleigh, NC 27616 - Seller EIN: 91-2197729

Amount of loss: \$7,500 (plus accruing IRS interest)

What happened

On August 21, 2025, I purchased and took delivery of a new 2026 Tesla Model Y Long Range All-Wheel Drive (VIN 7SAYGDEE6TA451515; total price \$51,630) from Tesla's Raleigh, NC location. The vehicle qualifies for the \$7,500 federal Clean Vehicle Credit under IRC § 30D, and I meet all eligibility requirements (Married Filing Jointly, modified AGI \$212,363 — under the \$300,000 limit).

At delivery, Tesla furnished me a Clean Vehicle Seller Report (IRS Form 15400), completed in the name of Tesla's General Manager, Dan Ansari, certifying that the vehicle was placed in service for my original use and that the maximum credit allowable is \$7,500.

However, Tesla never transmitted the corresponding time-of-sale report through the IRS Energy Credits Online portal, which is the step that creates the IRS record required to claim the credit. As a result, on June 8, 2026 the IRS issued Notice CP23 disallowing my \$7,500 credit because the vehicle's VIN "did not match IRS records," and assessed additional tax plus interest.

When I contacted Tesla (in writing, on March 26–27, 2026, to multiple departments), I received three different and inconsistent explanations: that my income was too high (false); that "Head of Household" had been entered (I do not file that way); and that a new employee may have made an error. I asked to review the internal document Tesla said explained the problem and was refused — I was not permitted to photograph it or receive a copy. Tesla has not corrected the filing or compensated me.

What I am asking

I am reporting Tesla's failure to complete a legally required clean-vehicle seller filing, its inconsistent and inaccurate explanations, and its refusal to provide documentation or remedy the resulting \$7,500 loss. I request that the FTC record this complaint and consider whether Tesla's handling of federal clean vehicle seller reporting is harming other consumers in the same way.

North Carolina Attorney General — Consumer Complaint (Tesla, Inc.)

How to file: Submit at ncdoj.gov/file-a-complaint (Consumer Protection) or call 1-877-5-NO-SCAM. Both you and the seller are in North Carolina, which gives the NC DOJ clear jurisdiction. Paste the narrative below, fill the [BRACKETED] fields, and attach the completed Form 15400, IRS Notice CP23, the Tesla Order Agreement, and your March 2026 emails to Tesla. Do **not** include your SSN.

Complainant - Name: Robert L. Brizzi - Address: 5220 Crescent Square St, Raleigh, NC 27616-4340 - Phone / email: (850) 221-7443 / brizzi78@icloud.com

Business complained against - Tesla, Inc., 2641 Sumner Blvd, Raleigh, NC 27616 (Raleigh delivery location) - Seller EIN: 91-2197729

Amount in dispute: \$7,500 (plus accruing IRS interest)

Complaint

On August 21, 2025, I purchased a new 2026 Tesla Model Y Long Range All-Wheel Drive (VIN 7SAYGDEE6TA451515; total price \$51,630) from Tesla's Raleigh, North Carolina location. The vehicle qualifies for the \$7,500 federal Clean Vehicle Credit under IRC § 30D, and I meet every eligibility requirement (Married Filing Jointly; modified AGI \$212,363, under the \$300,000 cap; vehicle under the \$80,000 SUV MSRP cap).

At delivery, Tesla furnished me a Clean Vehicle Seller Report (IRS Form 15400), completed in the name of Tesla's General Manager, Dan Ansari, certifying my eligibility and a maximum credit of \$7,500. Despite issuing that completed report, Tesla never transmitted the corresponding time-of-sale report through the IRS Energy Credits Online portal — the filing that creates the IRS record needed to claim the credit.

Because Tesla failed to complete that filing, the IRS issued Notice CP23 on June 8, 2026 disallowing my \$7,500 credit (stating the VIN "did not match IRS records") and assessing additional tax plus interest. I therefore lost a \$7,500 federal benefit solely because of Tesla's administrative failure, after Tesla had certified in writing that I qualified for it.

When I sought help (in writing to multiple Tesla departments on March 26–27, 2026), Tesla gave three inconsistent explanations — that my income was too high (false), that "Head of Household" had been entered (not my filing status), and that a new employee had erred. Tesla refused to let me photograph or keep the internal document it claimed explained the problem, and to date has neither corrected the filing nor reimbursed me.

Resolution requested

I ask the North Carolina Department of Justice to assist in obtaining one of the following from Tesla: (1) prompt submission of the late time-of-sale report for VIN 7SAYGDEE6TA451515 through the IRS Energy Credits Online portal, with written confirmation; or (2) direct reimbursement of the \$7,500 credit plus the IRS interest caused by Tesla's failure. I also ask that the Department review whether Tesla's conduct — listing a federal credit on its own completed report and then failing to file it — constitutes an unfair or deceptive trade practice under N.C. Gen. Stat. § 75-1.1.

Demand for Arbitration Against Tesla, Inc. — Unfiled Clean Vehicle Seller Report

Read first — which forum applies. Your Tesla Order Agreement contains a binding arbitration clause (AAA, Consumer Arbitration Rules). Unless you opted out in writing within 30 days of signing (most buyers do not), you generally **cannot** sue Tesla in regular court; disputes go to **AAA arbitration** — with one exception the agreement preserves: **small claims court**. So you have two realistic paths:

1. **Small claims (NC magistrate court)** — fast and cheap, but capped at **\$10,000** in most NC counties and not well suited to treble damages. Use this if you only want the **\$7,500 + interest** back quickly.
2. **AAA arbitration** — the route for claiming **"more"**: actual damages plus treble damages and attorney's fees under North Carolina's Unfair and Deceptive Trade Practices Act. This document is drafted for that path.

This is not legal advice. NC Chapter 75 and AAA procedure have specific requirements; have an attorney review before filing. Many consumer-protection attorneys take § 75-1.1 cases on contingency because the statute awards fees.

If Tesla refuses to participate in arbitration: it cannot simply "opt out" of a clause it drafted and already agreed to. If you file with the AAA and Tesla refuses to participate or to pay its share of the AAA fees, the AAA may close the case for non-payment — and a company's refusal to pay arbitration fees is widely treated by courts as a **waiver of its right to compel arbitration**. That waiver typically frees you to file the same claims in **NC District/Superior Court**, where the trebled \$22,500 + attorney's fees is **not** subject to the small-claims cap. In short, Tesla refusing arbitration does not trap you — it opens the courthouse. (And regardless, **small claims court remains available** for the \$7,500 + interest; see `tesla-small-claims-statement.md`.)

How to file (AAA)

1. Send the pre-dispute notice first (see `tesla-time-of-sale-request.md`) to resolutions@tesla.com. The Agreement requires the dispute to go unresolved for **60 days** before arbitration.
2. File at **adr.org** under the **Consumer Arbitration Rules**. You pay the consumer filing fee; under your Agreement, **Tesla pays all subsequent AAA fees**, and if you prevail Tesla reimburses your filing fee.
3. The arbitration is held in the city/county of your residence (Wake County, NC).

Demand for Arbitration

Claimant: Robert L. Brizzi, 5220 Crescent Square St, Raleigh, NC 27616-4340 **Respondent:** Tesla, Inc., 2641 Sumner Blvd, Raleigh, NC 27616 (EIN 91-2197729) **Agreement:** Tesla Motor Vehicle Order Agreement, Order No. RN125485754 **Amount in dispute:** \$7,500 actual damages, trebled to **\$22,500**, plus interest, attorney's fees, and costs.

Nature of the dispute

1. On August 21, 2025, Claimant took delivery of a new 2026 Tesla Model Y Long Range AWD (VIN 7SAYGDEE6TA451515; price \$51,630) from Respondent's Raleigh, NC location.
2. The vehicle qualifies for the \$7,500 federal Clean Vehicle Credit (IRC § 30D), and Claimant meets every eligibility requirement (MFJ; modified AGI \$212,363, under the \$300,000 cap; vehicle under the \$80,000 MSRP cap).
3. At delivery, Respondent prepared and **furnished Claimant a completed Clean Vehicle Seller Report (IRS Form 15400)**, completed in the name of Respondent's General Manager (Dan Ansari), certifying Claimant's original-use delivery and a maximum allowable credit of \$7,500.
4. Despite issuing that completed report, **Respondent never transmitted the corresponding time-of-sale report through the IRS Energy Credits Online portal** — the filing required to create the IRS record needed to claim the credit.
5. As a direct result, on June 8, 2026 the IRS issued Notice CP23 disallowing the \$7,500 credit (VIN "did not match IRS records") and assessed additional tax plus interest against Claimant.
6. Claimant notified Respondent in writing (March 26–27, 2026 and again on June 13, 2026). Respondent gave three inconsistent explanations (income too high — false; "Head of Household" entered — not Claimant's filing status; new-employee error), refused to provide the internal documentation it relied on, and has neither filed the report nor reimbursed Claimant.

Claims

- **Negligent misrepresentation / negligence.** Respondent completed and furnished a federal certification that Claimant was entitled to a \$7,500 credit, Claimant reasonably relied on it, and Respondent negligently failed to perform the ministerial filing that certification required, causing Claimant's loss.
- **Breach of the implied covenant of good faith** in performing the sale documentation it undertook to complete.
- **Unfair and Deceptive Trade Practices, N.C. Gen. Stat. § 75-1.1.** Certifying a federal benefit in a completed report and then failing to file it — followed by inconsistent, inaccurate explanations and refusal to provide records — is an unfair and deceptive act in or affecting commerce. Under **§ 75-16**, damages are **trebled**; under **§ 75-16.1**, the arbitrator may award **attorney's fees**.

Damages sought (the "more")

Item	Amount
Actual damages (lost credit)	\$7,500
Trebled under N.C. Gen. Stat. § 75-16	\$22,500
IRS interest caused by the disallowance	as accrued
Attorney's fees (N.C. Gen. Stat. § 75-16.1)	as proven
AAA filing fee reimbursement and costs	as incurred

Relief requested

In the alternative to monetary relief, Claimant will accept Respondent's prompt submission of the late time-of-sale report for VIN 7SAYGDEE6TA451515 through the IRS Energy Credits Online portal, with written

confirmation, **plus** the IRS interest already incurred and Claimant's costs.

Anticipated defense, and the answer to it

Respondent's Order Agreement states it "makes no promises, warranties or guarantees regarding fund availability or your eligibility for any incentives." That disclaimer does not bar this claim: Claimant **was** eligible, and the loss did not arise from a failed guarantee of eligibility or funding. It arose from Respondent's failure to **perform a filing it affirmatively put on its own federal form** — conduct the disclaimer does not address and cannot license.

Prepared as a working draft. Attach the completed Form 15400, IRS Notice CP23, the Order Agreement, and the March/June 2026 correspondence, and have counsel review before filing.

Small Claims Statement — Brizzi v. Tesla, Inc. (Wake County, NC Magistrate Court)

Why this path. Your Tesla Order Agreement's arbitration clause expressly says: "If you prefer, you may instead take an individual dispute to small claims court." That means **Tesla cannot force this into arbitration** and cannot refuse the forum. This is the route Tesla cannot dodge.

Limit & trade-off. NC small claims (magistrate) in Wake County is capped at **\$10,000**. That comfortably covers the **\$7,500 credit + IRS interest**, but it is below the trebled \$22,500 you could seek in arbitration/court. If you want the larger UDTPA recovery, use `tesla-arbitration-demand.md` instead (and see the note there: if Tesla refuses to arbitrate, that can waive the clause and let you file in NC District Court for the full amount).

How to file. Go to the Wake County Clerk of Superior Court (small claims division). File a **Complaint (AOC-CVM-200, "Complaint for Money Owed")** plus a **Magistrate Summons (AOC-CVM-100)**. Filing fee is modest (~\$96 + service). Attach the documents listed at the end. **This is not legal advice** — confirm the current Wake County limit, forms, and fees with the Clerk.

Parties

Plaintiff: Robert L. Brizzi, 5220 Crescent Square St, Raleigh, NC 27616-4340, (850) 221-7443

Defendant: Tesla, Inc. - Serve its **NC Registered Agent**: look up "Tesla, Inc." at the NC Secretary of State business search (https://www.sosnc.gov/online_services/search/by_title/_Business_Registration) and copy the registered agent's exact name and address **on the day you file** — registered agents change, and serving the wrong one can get the case dismissed. - Business location: 2641 Sumner Blvd, Raleigh, NC 27616

Amount claimed

\$7,520.58 (the \$7,500 credit plus \$20.58 IRS interest assessed as of the June 8, 2026 notice; interest continues to accrue — update before filing), not to exceed the \$10,000 magistrate limit, plus court costs and post-judgment interest.

Statement of claim (the "Complaint for Money Owed" narrative)

1. On August 21, 2025, Plaintiff purchased and took delivery of a new 2026 Tesla Model Y Long Range AWD (VIN 7SAYGDEE6TA451515; price \$51,630) from Defendant's Raleigh, NC location (Order No. RN125485754).
2. The vehicle qualifies for the \$7,500 federal Clean Vehicle Credit under IRC § 30D, and Plaintiff met every eligibility requirement (Married Filing Jointly; modified AGI \$212,363, under the \$300,000 limit; vehicle under the \$80,000 MSRP cap).
3. At delivery, Defendant prepared and **furnished Plaintiff a completed Clean Vehicle Seller Report (IRS Form 15400)**, completed in the name of Defendant's General Manager (Dan Ansari), certifying

Plaintiff's original-use delivery and a maximum allowable credit of \$7,500.

4. To make that credit claimable, Defendant was required to transmit the corresponding time-of-sale report through the IRS Energy Credits Online portal. **Defendant never did so.**
5. Because Defendant failed to file the report, the IRS issued Notice CP23 on June 8, 2026 disallowing Plaintiff's \$7,500 credit (stating the VIN "did not match IRS records") and assessing additional tax plus interest against Plaintiff.
6. Plaintiff notified Defendant in writing (March 26–27, 2026 and again on June 13, 2026). Defendant gave inconsistent explanations, refused to provide the documentation it relied on, and has neither filed the report nor reimbursed Plaintiff.
7. Defendant's failure to perform the filing it certified caused Plaintiff a direct, quantifiable loss of \$7,500 plus IRS interest. Defendant owes Plaintiff that amount.

Relief requested

Judgment against Defendant for **\$7,520.58** (plus interest accruing since the June 8, 2026 notice), plus court costs and post-judgment interest. In the alternative, an order that Defendant submit the late time-of-sale report for VIN 7SAYGDEE6TA451515 and reimburse the interest Plaintiff incurred.

Documents to attach

- Completed Tesla Clean Vehicle Seller Report (IRS Form 15400), dated 08/21/2025
 - IRS Notice CP23 (dated June 8, 2026)
 - Tesla Motor Vehicle Order Agreement (Order No. RN125485754)
 - Plaintiff's March 2026 emails to Tesla and any responses
-

Practical tips

- **Verify Tesla's NC registered agent** at the NC Secretary of State business search immediately before filing — serving the right agent avoids dismissal.
- **Bring the originals** of every attached document to the hearing; the magistrate decides quickly and the completed Form 15400 is your strongest exhibit.
- If Defendant tries to remove the case to arbitration, point the magistrate to the Order Agreement's own sentence preserving small claims court.

Small Claims Hearing Prep — July 22, 2026 (Wake County Magistrate)

Claim: Robert L. Brizzi v. Tesla, Inc. · **Amount:** \$7,500 + IRS interest + court costs · **Your goal:** a money judgment. Keep it simple — Tesla certified \$7,500, failed to file, you lost \$7,500.

Not legal advice. This is an organizational aid for a pro se hearing.

1. Bring THREE copies of every exhibit (magistrate, you, Tesla)

Put them in this order; the completed Form 15400 is your lead exhibit.

#	Exhibit	What it proves
A	Completed Form 15400 (08/21/2025, Dan Ansari, GM)	Tesla's own completed certification that you qualify for \$7,500
B	IRS Notice CP23 (06/08/2026)	IRS removed exactly \$7,500 (tax \$28,939 → \$36,439); the loss is real
C	Tesla Order Agreement (RN125485754)	The sale; the clause that preserves small claims
D	Your emails to Tesla (03/26–27/2026)	You demanded a fix; Tesla didn't resolve it
E	Form 8936 (as filed)	You properly claimed the credit with the correct VIN
F	One-page damages sheet	\$7,500 + interest = amount requested

Bring **originals** to show the magistrate; hand up the **copies**.

2. Your opening (say this, ~90 seconds)

"Your Honor, in August 2025 I bought a new Tesla Model Y and qualified for the \$7,500 federal Clean Vehicle Credit. At delivery, Tesla's own general manager completed this IRS Form 15400 — Exhibit A — stating that I qualified for the full \$7,500. But to make the credit real, Tesla had to file a matching report with the IRS electronically, and **they never did**. Because Tesla never filed it, the IRS disallowed my credit — Exhibit B — and billed me \$7,500 plus interest. I qualified. I did everything right. I lost \$7,500 solely because Tesla failed to file a report it had already completed. I'm asking for a judgment of \$[7,500 + interest] plus court costs."

3. Damages — keep the math clean

- IRS removed **exactly \$7,500** (Exhibit B: total tax \$28,939 → \$36,439).
- Plus IRS interest (was \$20.58 as of 06/08/2026 — **recompute to the hearing date** and state the current figure).
- **Ask for:** \$[7,500 + current interest] + court costs.

4. Anticipate Tesla's moves — and your rebuttals

If Tesla says...	You say...
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"This must go to arbitration."	"Your Honor, Tesla's own Order Agreement says: <i>'If you prefer, you may instead take an individual dispute to small claims court.'</i> This forum is expressly permitted." (Exhibit C)
"We disclaim any guarantee of incentives."	"I'm not claiming a guarantee — I <i>was</i> eligible. My loss came from Tesla failing to perform a report it completed but never filed, not from any eligibility guarantee."
"It's the IRS's fault / go to the IRS."	"Only the seller can file the time-of-sale report. The IRS denied it <i>because</i> Tesla never filed. Tesla certified \$7,500 in writing — Exhibit A."
"The credit ended / portal is closed."	"My car was placed in service Aug 21, 2025 — before the cutoff — so the credit is valid. Tesla was required to file and never did; if it can still be fixed, only Tesla can. Either way, I'm out \$7,500 because of Tesla."
Tesla doesn't appear	"I request a default judgment, Your Honor." (Bring proof of proper service on Tesla's registered agent.)

5. Logistics / do's & don'ts

- **Confirm service** on Tesla's NC registered agent was completed and bring the return-of-service proof — improper service is the #1 reason cases get continued.
- Arrive **early**, dress neatly, address the magistrate as "**Your Honor.**"
- Stick to **money owed**; stay calm and factual. **Do not** ask for pain and suffering — a magistrate awards economic loss, not emotional distress.
- Let Tesla talk; correct only facts, using your exhibits by letter.
- Have the **one-line theory** ready if interrupted: *"Tesla certified the credit, never filed it, and I got billed \$7,500."*

5a. Tesla's main defense: "You attested Head of Household, income > \$225k"

This is Tesla's argument. It fails on **three independent grounds** — any one wins. Your actual filed MAGI is \$212,363, filed **Married Filing Jointly**.

1. **It contradicts the IRS's own reason.** CP23 (Exhibit B) denies for a **VIN not in IRS records** — i.e., no seller report on file — *not* income. If Tesla had filed a "HoH > \$225k" report, the IRS would deny for income and say so. It didn't. The VIN-mismatch denial proves Tesla never filed the report.

"Tesla says income. The IRS says the VIN wasn't in their records — meaning Tesla never filed. Tesla is arguing a reason the IRS never gave."

2. **Eligibility is set by the filed return, not an app entry.** I filed jointly, MAGI \$212,363, under the \$300,000 MFJ limit. An app checkbox does not override my federal return.

"The law tests my actual return, not Tesla's app. I filed jointly at \$212,363 — under the limit."

3. **Even as Head of Household, I still qualify.** The HoH limit is **\$225,000**. My income (\$212,363) is **under it**. So even accepting Tesla's version, I was eligible under *both* thresholds.

"Even if I were Head of Household, \$212,363 is under the \$225,000 limit. Under any filing status, I qualified."

Plus: Tesla completed Form 15400 (Exhibit A) in its GM's name, putting my credit at \$7,500 — Tesla can't

put \$7,500 on its own form and then argue I didn't qualify.

4. **It should have been filed regardless — filing ≠ deciding eligibility.** The seller's duty to file the time-of-sale report is mandatory; income eligibility is decided at tax time on my return, not by a dealer choosing not to file. By never filing, Tesla blocked a credit I actually qualify for. Tesla had over nine months — including after my March 2026 written demand — and let the deadline pass. Tesla's own Form 15400 lists max credit **\$7,500, not \$0** — if Tesla thought I was over-income, why certify \$7,500?

"Tesla had to file that report regardless. Income is decided on my return — not by Tesla. They had nine months and my March-and-May 2026 demands — while the portal was still open — and let the deadline pass. That's why I'm out \$7,500."

5. **The app is not foolproof — and it's Tesla's, not mine.** It's Tesla's own error-prone system (defaults, dropdowns, employee entry); it is **not a sworn tax document**; and Tesla has refused to produce the record every time. My sworn, filed return says I qualify.

"Their app isn't foolproof — it's Tesla's system, not a sworn document, and they won't produce the record. My sworn return says I qualify."

6. **This dealer failure is nationwide and IRS-acknowledged.** Dealers across the country failed to correctly file these reports; in one case the dealership's own general manager admitted his staff "used the wrong form" loaded in their system. The IRS acknowledged the problem and reopened the portal. So a dealer data entry is not proof of buyer error — it's a documented dealer-side system failure. (See [systemic-reporting-failures.md](#).)

Discipline: don't argue "did I click it or not." State you file jointly and would never select HoH, then **pivot:** "It doesn't matter — my actual return qualifies under any threshold." Demand Tesla **produce** the app record it keeps refusing to show; the burden is on Tesla, and it has withheld the document.

5b. The "mic-drop" — hand up Exhibit A and let it land

Your whole case fits on one piece of paper: **Tesla's own completed Form 15400**. Use it as the weapon. When you hand it to the magistrate, say:

"Your Honor, everything Tesla disputes is answered by Tesla's own form. On this form, Tesla's general manager listed — on its own form — my name, my VIN, that I took delivery for my own use, and the exact number: seven thousand five hundred dollars. Tesla wrote that. Tesla put that number on its own form. Then Tesla failed to file it. I'm not asking you to take my word for anything — I'm asking you to hold Tesla to its own."

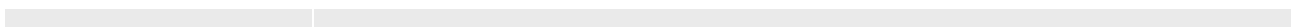
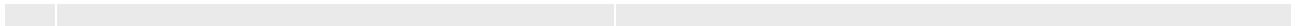
Then stop talking. Let the silence do the work.

Three lines to keep in your pocket (use one, don't force all three): - "Tesla certified the credit, never filed it, and sent me the bill." - "I have Tesla's own form saying I qualified, and the IRS saying Tesla never filed. Both are Tesla's doing." - "The only party who could file this report is the one that didn't — Tesla."

Rebuttal drill (say these out loud a few times before the 22nd): - Arbitration → "Their own contract preserves small claims." (Exhibit C) - Disclaimer → "I was eligible; they failed to file. Different thing." - Blame IRS → "The IRS denied it *because* Tesla didn't file." - Portal closed → "False — placed in service before the cutoff; portal stays open for registered sellers."

6. After the hearing

- If you win: get the written judgment; note how/when Tesla must pay.
- Winning here does **not** bar the separate IRS fix — keep pressing Tesla/corporate to file the ECO report so the credit itself is restored (avoid double recovery: credit any payment received).
- The **Aug 7 IRS CP23 deadline still stands** regardless of the hearing outcome — mail that response (with Sterling).



Systemic Dealer Reporting Failures — Supporting Research

Purpose: document that "information entered but not correctly received/filed" in the clean-vehicle credit system is a **known, nationwide, IRS-acknowledged** dealer-side failure — not a buyer error. Supports (a) the small-claims argument that Tesla's app/systems are not foolproof and the report should have been filed, and (b) the IRS CP23 response.

Key findings (sourced)

1. **Nationwide pattern.** Buyers across the country were denied the credit "because their dealers did not report the sale" through IRS Energy Credits Online. NPR spoke to "a half-dozen other EV buyers throughout the country" with the same problem. (NPR, "EV tax credit denied for some car buyers," 02/28/2025; OPB reprint.)
2. **A dealer GM admitted the error (parallel case).** In the Kristina Meier case, the dealership's **general manager conceded** his employees "just used the paperwork that was loaded into their dealership computer systems. 'It was the wrong form.'" → Direct precedent that dealer data-entry/forms fail and the fault is the dealer's, not the buyer's.
3. **IRS acknowledged it and reopened the portal.** The IRS reinstated/reopened Energy Credits Online for dealers to submit time-of-sale reports retroactively, and waived the 72-hour deadline. (CBM CPA, 04/01/2025; NADA.)
4. **IRS-stated buyer remedy.** Per an IRS spokesperson (NPR): *"taxpayers who receive an error or rejection of their Clean Vehicle Tax Credit submission can submit their proof of purchase of a qualified vehicle directly to the IRS."* → The Brizzis hold that proof: the completed Form 15400 + purchase agreement.

Sources

- NPR: <https://www.npr.org/2025/02/28/nx-s1-5301005/ev-tax-credit-returns-denied>
- OPB: <https://www.opb.org/article/2025/02/28/ev-tax-credit-denied-for-some-car-buyers-dealers-didnt-correctly-report-sales/>
- WRAL: <https://www.wral.com/consumer/5onyourside/tax-returns-ev-credit-rejected-irs-response-march-2025/>
- CBM CPA: <https://www.cbmcpa.com/2025/04/01/irs-reinstates-time-of-sale-reporting-for-2024-clean-vehicle-credit-claims/>
- IRS seller/dealer requirements: <https://www.irs.gov/credits-deductions/clean-vehicle-credit-seller-or-dealer-requirements>

How to use it

- **Small claims (July 22):** Tesla's app entry is not proof of buyer error — this same failure (dealer forms/systems not correctly received) is nationwide and the IRS itself acknowledged it. The seller's duty to file is independent of income.
- **IRS CP23 response:** invoke the IRS's own remedy — submit proof of purchase (completed Form

15400 + purchase agreement) directly and request the credit be allowed on that proof.

- **Caveat:** these are news-reported examples, not binding precedent; use as pattern/credibility support.

Court-Records Search Checklist — Suits Against the Raleigh Tesla / Tesla, Inc.

Purpose: confirm directly whether anyone has sued the Raleigh Tesla location (2641 Sumner Blvd) or Tesla, Inc. over the Clean Vehicle Credit / Form 15400 non-filing — and surface related consumer cases. Web/news search will **not** reliably show individual consumer suits; you have to check the dockets.

What public/news search already showed (as of June 13, 2026)

- **No** reported lawsuit naming the Raleigh Tesla location or Dan Ansari over the Form 15400 / \$7,500 credit issue.
- **No** known class action specifically about Tesla failing to file the time-of-sale report.
- The underlying failure mode **is** widely documented (NPR, WRAL, Heatmap, KBB): dealers — Tesla included — not filing time-of-sale reports, causing IRS denials.
- Signatory verified: **Dan Ansari, General Manager, Multi-Unit, Tesla (Raleigh).**

Nationwide Form 15400 litigation scan (as of June 13, 2026)

- **No reported class action or named consumer lawsuit** specifically about dealers failing to file the Clean Vehicle Seller Report (Form 15400) / time-of-sale report. Appears to be an un-litigated (or not-yet-public) gap. Live dockets (PACER, state portals) not yet checked — see steps below.
- **Cross-manufacturer problem, not Tesla-only:** Rivian buyers report the same IRS rejection for a missing seller report (Rivian Forums). Same failure mode.
- **Named press example:** buyer Kristina Meier, denied because her dealer didn't file (NPR, Feb 28 2025).
- **Adjacent EV litigation (different issues):** Ford dealer class action over EV battery warranty reimbursements (Hagens Berman / Bellavia Cohen, Dec 2025); Tesla used-car fraud / consumer-law suit (Automotive News). State AGs (NY, MA) have sued dealerships for deceptive practices.
- **Context:** IRS reopened the ECO portal and waived the 72-hour deadline for 2024 sales, which defused many cases — but only where the dealer actually re-files. Tesla has not done so here.
- **Takeaway:** no class action to join yet; conditions for one are ripe (systematic, cross-brand, documented). NC UDTPA fee-shifting (§ 75-16.1) makes an individual case viable regardless.

Corroborating complaint pattern — Raleigh Tesla (context, not proof)

Anecdotal online reviews/forums show a consistent pattern of poor service and non-responsiveness at the Raleigh Tesla locations (2641 Sumner Blvd; 7101 Glenwood Ave) — recurring themes of being "ghosted," poor communication, and unresolved issues. Sources: Tesla Motors Club ("Raleigh... Google reviews, mostly BAD"; "Bad Experience at Tesla Service Center Raleigh"), Tesla Owners Online, Yelp. BBB lists Tesla as **not accredited** / **"Not Rated"** with a complaint backlog.

- **Use:** supports the UDTPA "unfair practices / course of conduct" framing and the NC AG complaint (claimant is not an isolated incident).
- **Caveat:** these are unverified consumer reviews, not court records or the same Form 15400 issue. Context only.
- Location phones: Sumner Blvd (984) 275-6247 · Glenwood Ave (919) 420-0280.

1. North Carolina state courts — NC eCourts Portal (Wake County)

- Portal: <https://portal-nc.tylertech.cloud/Portal/> (NC Judicial Branch eCourts)
- Search **Party / Business name** = "Tesla", filter to **Wake County**.
- Also search "**Tesla, Inc.**" and the registered-agent name (from the SOS lookup).
- Note civil (CVD/ CVS) and small-claims (CVM) cases; record case numbers and status.
- Free public-access terminals: **Wake County Justice Center**, 301 S. McDowell St, Raleigh. Clerk of Superior Court (civil): (919) 792-4000.
- eCourts Help Desk: (919) 890-2220 (M–F, 8–5).

2. Federal court — U.S. District Court, Eastern District of NC (EDNC)

- **PACER**: <https://pacer.uscourts.gov> (create a free login; small per-page fee).
- Search party name "**Tesla**" in **EDNC**; also run a nationwide **PACER Case Locator** for "Tesla" + "clean vehicle" / "30D" / "seller report" to catch any consumer class action filed elsewhere.
- Free alternative: **CourtListener** / **RECAP** (<https://www.courtlistener.com>) — search "Tesla" + "clean vehicle credit" / "Form 15400".

3. Consumer-complaint / regulator databases (not courts, but useful)

- **FTC** complaints are not public per-company, but your own filing builds the record.
- **NC DOJ Consumer Protection**: ask whether other complaints exist against Tesla for clean-vehicle reporting — file at ncdoj.gov/file-a-complaint.
- **BBB** (Better Business Bureau) — search Tesla Raleigh for complaint patterns.
- **NHTSA / CFPB** — not on point for tax credits; skip.

4. Find a lawyer already working this issue

- Search "**clean vehicle credit attorney**" / "**EV tax credit dealer failed to report lawyer**" plus North Carolina.
- Ask any consumer-protection firm whether they are aggregating Form 15400 non-filing claims — if Tesla did this systematically, a class action may form, and § 75-16.1 fee-shifting makes individual representation viable.

What to capture for each case found

Field	Note
Case number	
Court / county	
Plaintiff / defendant	Confirm it's Tesla, Inc. or the Raleigh entity
Claim type	Tax credit / 15400? consumer? other?
Status / outcome	Useful as precedent or to join

If you find a related case, send me the case number or caption and I'll help you read it and decide whether it strengthens your claim or is one to join.

Finding an Attorney — Form 15400 / EV Credit / NC UDTA

*Leads to vet — **not endorsements**. These are categories and names surfaced in public research; confirm experience, fees, and fit before hiring. Most consumer attorneys offer a **free initial consult** and work on **contingency** for UDTA claims (because § 75-16.1 shifts fees to the defendant).*

Avoid: dealer-side firms

Auto firms like **Bellavia Cohen** / **DealerLaw.com** represent **dealerships**, not consumers — they'd be on Tesla's side. Not a fit.

Category 1 — National consumer class-action firms

For the "be first to file a 15400 class" angle (Tesla + Rivian buyers nationwide hit the same failure). - **Hagens Berman** (hbsslaw.com) — large nationwide consumer/auto class-action firm; already litigating EV-program money against Ford. Takes cases nationwide, contingency. - Find more via the directories below ("consumer class action," "auto fraud").

Category 2 — NC consumer-protection / UDTA attorneys

For your individual § 75-1.1 claim (\$7,500 → treble \$22,500 + fees). - **Horton & Mendez** (hortonmendez.com) — markets NC unfair/deceptive trade practices work. (Vet for EV/dealer-reporting experience.) - Find more via the NC Bar referral and NACA below.

Category 3 — Directories (best way to find + compare)

- **NACA — National Association of Consumer Advocates:** consumeradvocates.org/find-an-attorney (filter by state + auto fraud/consumer).
- **NC State Bar Lawyer Referral Service:** ncbar.org.
- **Avvo / Justia / Martindale** — filter "consumer protection" / "auto dealer fraud," North Carolina.

Questions for the consult

1. Do you take § 75-1.1 cases on **contingency**?
2. Have you handled **dealer-failure-to-report** / **EV tax credit** matters?
3. **Individual** UDTA claim or a **class** of Tesla/Rivian buyers?
4. How does Tesla's **arbitration clause** (and its refuse-to-pay-fees waiver angle) change strategy?
5. What's realistically recoverable — and what's the timeline?

Intake packet to bring

- `case-timeline.md` (the summary), the **completed Form 15400**, IRS Notice CP23, the Tesla Order Agreement, and the March/June 2026 Tesla correspondence.

Cover Email — Attorney Outreach

*Send to consumer-protection / auto-fraud attorneys (see [attorney-search.md](#)). Attach **Brizzi-Tesla-Case-File.pdf**. Keep it short — attorneys skim intake emails. Send individually (not one mass CC).*

Subject: Consumer claim — Tesla certified my \$7,500 EV credit, then never filed it (NC UDTPA)

Dear [Attorney / Firm name],

I'm seeking representation (or a consultation) on a consumer claim against Tesla, Inc., and I think it may also be a viable class.

In August 2025 I bought a new Tesla Model Y in Raleigh, NC. I fully qualified for the \$7,500 federal Clean Vehicle Credit (married filing jointly, MAGI \$212,363; vehicle under the cap). **At delivery, Tesla's general manager completed and gave me the IRS Clean Vehicle Seller Report (Form 15400) certifying the \$7,500 credit — but Tesla never transmitted the matching time-of-sale report through the IRS Energy Credits Online portal.** Because that filing was never completed, the IRS disallowed my credit (Notice CP23, June 2026) and billed me the \$7,500 plus interest. Tesla gave me three inconsistent explanations, refused to share its records, and has not corrected the filing despite written demands.

I believe this supports a North Carolina UDTPA claim (§ 75-1.1) for treble damages and attorney's fees, and possibly negligent misrepresentation. The same failure is hitting other EV buyers (Tesla and Rivian), so a class may be appropriate.

Time-sensitive: my IRS deadline to dispute is August 7, 2026.

I've attached a complete case file (completed Form 15400, the IRS notice, the order agreement, my correspondence with Tesla, and a damages/strategy summary). Could we schedule a brief consultation? I'm hoping to work on a contingency basis.

Thank you,

Robert L. Brizzi 5220 Crescent Square St, Raleigh, NC 27616-4340 (850) 221-7443 · brizzi78@icloud.com

Attachment: Brizzi-Tesla-Case-File.pdf

When a \$7,500 Tax Credit Vanishes: One Tesla Buyer's Search for Answers

When I purchased a new Tesla Model Y in September 2025, I expected the usual challenges of owning a new vehicle. I did not expect to spend months trying to determine why the IRS later took back a \$7,500 federal Clean Vehicle Credit.

The IRS notice I received was surprisingly specific. According to the agency, the credit was disallowed because the vehicle identification number (VIN) reported on my tax return did not match IRS records.

That sounded like a paperwork problem, so I went looking for answers.

The answers I received depended on who I asked.

First, I was told my income was too high to qualify for the credit.

When I pointed out that I filed my taxes as Married Filing Jointly and appeared to be under the applicable income threshold, I received a different explanation. I was told that Head of Household had been entered during the transaction process.

I explained that I would never have selected Head of Household because I do not file that way.

Then came a third explanation: perhaps a new employee had entered the information incorrectly.

At that point, I asked to review the documentation that supposedly explained what had happened.

I was not allowed to photograph it.

I was not given a copy.

I was told it was internal information.

The result was a frustrating situation in which I was being held responsible for information I was not allowed to verify.

What makes this especially confusing is that the IRS notice did not cite income eligibility. It cited a VIN mismatch.

Eventually, the documents themselves told the story the explanations would not.

Among my delivery paperwork was a Clean Vehicle Seller Report — IRS Form 15400 — that Tesla had prepared and completed. On it, Tesla's own general manager stated, in its seller report, that I had taken delivery of the vehicle for my own use and that the maximum credit allowable was \$7,500. Every fact the credit depends on was there, on Tesla's own form.

So Tesla had certified that I qualified. The IRS had no record that I existed. Both things were true at once, and once I understood why, the contradiction dissolved.

A completed paper form handed to a customer is not the same as an electronic filing transmitted to the government. Under the rules for this credit, the seller must submit a time-of-sale report through the IRS Energy Credits Online portal. That electronic submission is what creates the record the IRS checks a return

against. Tesla gave me the paper. Tesla never completed the filing.

That single gap explains everything: the completed form promising \$7,500, the IRS notice reporting no matching record, and the shifting excuses from people who were reaching for an explanation instead of checking whether the report had actually been filed. It was never my income. It was never my filing status. It was a clerical step the seller certified but did not finish.

As consumers increasingly rely on digital systems to process tax incentives, rebates, and credits, transparency becomes more important, not less. When a manufacturer completes a federal form certifying a benefit and then does not file it, the customer is left holding a promise the government has no record of — and, in my case, a \$7,500 bill for the difference.

This story is not simply about one tax credit. It is about accountability.

If a customer loses a federal tax benefit because a seller certified a report and then failed to file it, that customer should be able to obtain a clear explanation supported by documentation — and a correction.

That should not be a controversial expectation.

I finally know what happened to my \$7,500 credit. The remaining question is simpler, and harder: who will make it right.